

TENTATIVE RULING

Michael Cline vs. Volkswagen Group of America, Inc. (25CV004168)

Plaintiff Michael Cline moves for an award of attorneys' fees following Plaintiff's acceptance of Defendant's settlement offer pursuant to Code of Civil Procedure section 998 to resolve this matter for payment of a set sum, plus statutory attorneys' fees, costs, and expenses to be determined by motion.

By this motion, Plaintiff seeks an award of attorneys' fees in the total amount of \$22,973.49, consisting of: (1) \$13,900.00 in attorneys' fees on the underlying case; (2) a 1.3 multiplier enhancement on the attorney fees; and (3) \$3,000 in anticipated attorneys' fees to review the opposition, prepare the reply, and prepare for and attend the hearing on this Motion. Plaintiff also seeks costs in the amount of \$1,003.49.

The Motion is GRANTED, and Plaintiff is awarded attorneys' fees in the amount of \$11,765.00 and costs in the amount of \$1,003.49.

The attorney time sought by Plaintiff on the motion is reasonable for the work performed and no deductions are made. The court declines to award a multiplier. The court adjusts the hourly rates awarded to \$350 per hour for Mr. Yousef as counsel and \$150 per hour for support staff. These rates are consistent with the prevailing rates in the community for similar work.

Plaintiff's Request for Judicial Notice is granted.

Plaintiff's reply brief was filed late on August 17, 2026. Plaintiff is reminded that late filings may not be considered in the future.

Plaintiff is to prepare the court's order consistent with the tentative ruling.

NOTE RE: TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by complying with Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9.

Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.

You must notify the court by emailing TentativeRulings@monterey.courts.ca.gov or by telephoning the Calendar Department at (831) 647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.